

the motion"].)

IV. Conclusion

For the foregoing reasons, the Motion for Summary Judgment, or in the Alternative, Summary Adjudication, is **denied**. The Court will entertain an application to file a renewed motion by Defendant, provided it is not simply a "reformatted, condensed, and cosmetically repackaged" version of this motion. (See *Patterson v. Sacramento City Unified School Dist.* (2007) 155 Cal.App.4th 821, 827.)

6. 9:00 AM CASE NUMBER: C25-00271
CASE NAME: PRAVEEN GUPTA VS. CONTRA COSTA COUNTY
***HEARING ON MOTION IN RE: TO STRIKE PORTIONS OF SECOND AMENDED COMPLAINT**
FILED BY: CONTRA COSTA COUNTY
TENTATIVE RULING:

Please see Line 7.

7. 9:00 AM CASE NUMBER: C25-00271
CASE NAME: PRAVEEN GUPTA VS. CONTRA COSTA COUNTY
HEARING ON DEMURRER TO: PLAINTIFF'S SECOND AMENDED COMPLAINT
FILED BY: CONTRA COSTA COUNTY
TENTATIVE RULING:

The demurrer is **sustained without leave to amend**, as discussed below. The motion to strike is **denied as moot**.

I. Factual Background

The Second Amended Complaint ("SAC") here involves tax sales of real property by Contra Costa County (erroneously sued as County Board of Supervisors of Contra Costa County) to plaintiff, Praveen Gupta. Plaintiff purchased the parcels by way of auction. One parcel (APN 264-081-013-7) was purchased in February of 2014 while the other (APN 264-081-014-5) was purchased in February of 2016. (SAC, ¶¶4.) Plaintiff alleges that the County sold the parcels despite lack of an easement. (SAC, ¶¶5-7.)

Plaintiff alleges that the County has assessed the parcels consistent with them being accessible by the easement over neighboring land. (SAC, ¶12) Nonetheless, a court judgment in April 2024 found plaintiff's properties had been landlocked at the time he purchased them, as well as since that time. (*Ibid.*)

While not described in detail in the SAC, the Court takes judicial notice of the Statement of Decision by the trial judge in that case, the Honorable Terri Mockler, who heard testimony, visited the site, and reviewed numerous documentary exhibits. (See Request for Judicial Notice in Support of Opposition to Demurrer to Complaint, filed September 22, 2025, Ex. B [Notice of Entry of Order with attached Statement of Decision].) Judge Mockler found in favor of the defendant neighbors (*id.* at 20), making numerous factual and legal findings, including, but not limited to (1) plaintiff's disputes with the neighboring owners pre-dated his purchase in 2016, (2) the City of Orinda did not misrepresent

access, that easement rights were adversely possessed, and (3) the easement had been abandoned. The case was not appealed.

Plaintiff alleges here, in his SAC, that the County should have known there was no access based on its approval of construction projects that encroached upon the easement, and as the owner of plaintiff's parcels at the time. (SAC, ¶13.)

Plaintiff alleges he filed a claim with the Contra Costa County Board of Supervisors on July 16, 2024 under Revenue and Taxation Code sections 3729, 3731, 5096, and 5097, "seeking rescission of the tax sales and a full refund of all amounts paid." (SAC, ¶40.)

The claim seeks damages in the amount of \$548,420, which reflects the price paid for the parcels (approximately \$18k and \$32k), taxes paid on them (approximately \$25k and \$26k), costs of development efforts (\$68k), attorney cost for "City Letter" (approximately \$8k), court case costs for case C19-02408 (approximately \$54k), court case costs for C22-00619 (approximately \$65k), cost of "effort" and punitive damages (approximately \$150k), and interest (approximately \$100k). Notably, nothing in the claim mentions "rescission." (See Request for Judicial Notice in Support of Opposition to Demurrer to Complaint, filed September 22, 2025, Ex. C [Government Code Claim stamped "received" July 16, 2024].)

On August 13, 2024, the claim was rejected in full, partly (but not entirely) on the basis that it was untimely. (See Request for Judicial Notice in Support of Opposition to Demurrer to Complaint, filed September 22, 2025, Ex. D [correspondence regarding claim].) Plaintiff requested reconsideration and submitted additional information. (*Ibid.*) The County again rejected his claim, considering it as an "amended claim." (*Ibid.*) Because the County continued to respond to plaintiff by referring to the Government Claims Act, plaintiff explained in correspondence that his claim was not subject to the Act as a Revenue and Taxation Code claim and asked that he be refunded the money he paid for the properties, among other items. (*Ibid.*)

Later, on January 14, 2025, the County denied plaintiff's application for leave to present a late claim ("BOARD ORDER: [...] This application to File Late Claim is denied (Section 911.6).") Government Code section 911.6, which is within the Government Claims Act, requires the board to "grant or deny [an application to present a late claim] within 45 days after it is presented." (*Ibid.*)

Plaintiff then filed a petition with the court for leave to present a late claim pursuant to the Government Claims Act. The case was assigned to Judge Edward Weil.

Plaintiff also filed this action on January 29, 2025. The matter was assigned for all purposes to Judge Danielle Douglas.

In August 2025, in ruling on plaintiff's petition (pursuant to the Government Code Claims Act), Judge Weil ruled the petition was "moot" in part because the claims brought pursuant to the Revenue and Taxation Code were exempt from the claim filing requirements in the Government Claims Act. (See Request for Judicial Notice in Support of Opposition to Demurrer to Complaint, filed September 22, 2025, Ex. A [court ruling on late claim petition].)

Since Judge Weil's ruling on the petition, two demurrers have been sustained in the case, with leave to amend. Plaintiff filed the current SAC on March 25, 2026. Plaintiff's SAC sets forth five causes of action as follows: (1) Refund and Rescission; (2) Tax Refund and Cancellation; (3) Traditional Mandamus; (4) Declaratory Relief; and (5) Inverse Condemnation.

After meeting and conferring with plaintiff, as required by Code of Civil Procedure, section

430.41, the County filed this demurrer pursuant to Code of Civil Procedure section 430.10, subdivision (e), which plaintiff opposes in a memorandum of points and authorities that, against the California Rules of Court, exceeds 15 pages. (Cal Rules of Court, Rule 3.1113 (d).) The Court has nonetheless considered the arguments therein, as well as in the County's reply.

II. Evidentiary Matters

The County's request for judicial notice in support of the demurrer is **granted**.

Plaintiff's request for judicial notice of the subdivision map, as well as tax assessment records, is **granted**.

III. Demurrer Standard

In reviewing the sufficiency of a complaint, all material facts properly pleaded are deemed admitted, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Allegations must be liberally construed by drawing reasonable inferences from the facts pleaded, and with a view to substantial justice between the parties. (Code Civ. Proc., § 452; *Flynn v. Higham* (1983) 149 Cal. App. 3d 677, 679.)

IV. Discussion

A. First Cause of Action for Refund and Rescission

Plaintiff seeks to rescind the tax sales based on his receipt of parcels that did not include the easement rights he claims they should have included. The easement rights were extinguished, as held in the judgment, years before the tax sales.

Property sold at a tax sale is offered and sold "as is." (Rev. & Tax. Code, § 3692.3 (a).) The doctrine of "caveat emptor" applies. (*Craland, Inc. v. Cal.* (1989) 214 Cal.App.3d 1400, 1406.) The plaintiff's only remedies for having purchased properties he claims were defective in this manner are the statutory remedies set forth in the California Revenue and Taxation Code. (*Ribeiro v. County of El Dorado* (2011) 195 Cal.App.4th 354, 361.) The County, in preparing, conducting, and executing a tax sale, is not liable for "known or unknown conditions," including, but not limited to, errors in the assessor's records pertaining to improvement of the property. (Rev. & Tax. Code, § 3692.3 (b)(1).)

Under the Revenue and Taxation Code, a deed to a property sold at a tax sale may be rescinded under certain conditions. Revenue and Taxation Code section 3725, subdivision (a) provides as follows:

A proceeding based on alleged invalidity or irregularity of any [tax sale] can only be commenced in a court if both of the following are satisfied:

(1) The person commencing the proceeding has first petitioned the board of supervisors pursuant to Section 3731 within one year of the date of the execution of the tax collector's deed.

(2) The proceeding is commenced **within one year of the date the board of supervisors determines that a tax deed sold** under this part should not be rescinded pursuant to Section 3731.

(Rev. & Tax. Code, § 3725(a), emphasis added.)

Section 3725 further excludes tax sale challenges from the Code of Civil Procedure sections

addressing statutes of limitations. (*Id.*, at subd. (b).)

Plaintiff here did not petition the County within a year after the tax deeds were executed and instead waited until July 2024, following his defeat in litigation against neighboring property owners. July 2024 is approximately ten years after purchasing one parcel and eight years after purchasing the other. Plaintiff's facts do not overcome this delay.

Plaintiff argues, as he has previously, that the triggering event for any statute of limitations was the judgment in his case against the neighboring property owners. The County has cited in previous demurrers, and again cites here, *JPMorgan Chase Bank, N.A. v. City and County of San Francisco* (2009) 174 Cal.App.4th 1201. (Memorandum of Points and Authorities in Support of Demurrer, 7:3-4.) That case expresses doubt that "state courts may apply the judicially created doctrine of equitable tolling to alter state tax refund procedures established by the Legislature pursuant to its constitutional grant of power." (*JPMorgan Chase Bank, N.A.*, *supra*, 174 Cal.App.4th at 1213.)

While plaintiff argues Revenue and Taxation Code, section 3725 is different from the statute at issue in *JPMorgan Chase Bank* (which analyzed section 5097), the discussion in that case favors the County's position here. That is because the language of the statute specifically delineates the remedies available, but only under certain procedural guidelines, *i.e.*, the petitioning of the County within one year of deed execution. (See Memorandum of Points and Authorities in Support of Demurrer, 7:18-28; Rev. & Tax. Code, § 3725 (a)(1).) Section 3725 is clear and leaves no room for application of the discovery doctrine, or equitable tolling. Plaintiff has had several opportunities to provide the Court with authority that would support application of the discovery rule here. He has not done so.

Even assuming that the discovery rule applies to Revenue and Taxation Code, section 3725 (which has not been established and would appear to contradict the underlying reasons for these sales being "as is"), plaintiff had notice the parcels were landlocked years before he petitioned the County, as evidenced by the judgment in his case against his neighboring property owners.

As reflected in Judge Mockler's statement of decision, attached to the original Complaint as Exhibit 1 to Exhibit A, plaintiff made an inspection in March 2014 at which time he noted that the paved road ended at the property of his neighbor. His neighbor insisted that his property encroached upon the easement of record. This constituted notice to plaintiff sufficient to set the clock ticking on his time to petition the County. While the reasonableness of a delay can be a question of fact (see *Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797), it can also be determined as a matter of law in cases where the undisputed facts show the requisite notice. (*65 Butterfield v. Chi. Title Ins. Co.* (1999) 70 Cal.App.4th 1047, 1054-1055 ["it is the discovery of facts, not their legal significance, that starts the statute"].)

Further, to the extent that Judge Weil ruled plaintiff did not need leave to file a late Government Code claim related to his claims against the County, and that plaintiff's petition for such leave was moot, the ruling does not establish timeliness of the claims herein.

The demurrer to this cause of action is sustained on the ground that any challenge to the tax sales is untimely.

B. Second Cause of Action for Tax Refund and Cancellation — Post-Adjudication Assessments

Plaintiff contends the second cause of action is pleaded “in the alternative to Cause 1,” but in fact, it appears to depend on the outcome of the first count. (See Memorandum of Points and Authorities in Support of Opposition, 13:19-21 [plaintiff argues that “If the tax deed is voided or the sale rescinded, the County's basis for all post-sale tax assessments collapses.”].)

Plaintiff seeks to be refunded for his taxes since the April 22, 2024 judgment as provided in sections 5096 and 5097 of the Revenue and Taxation Code. (SAC, ¶¶53-54.) As noted in the SAC, this cause of action is governed by a “four-year lookback period.” (SAC, ¶153.)

The County demurs, arguing plaintiff is not entitled to recover any assessments because he did not exhaust administrative remedies for assessment reduction. Whether or not plaintiff pleads the second cause of action in the alternative, the County's position is correct. As stated in *LA Live Properties, LLC v. County of Los Angeles* (2021) 61 Cal.App.5th 363, 377, in the property tax context, exhaustion is required. This means a taxpayer ordinarily may not file or pursue a court action for a tax refund without first applying to the local board of equalization for assessment reduction. (*LA Live Properties, LLC, supra*, 61 Cal.App.5th at 377.) While the demurrer cites this case, plaintiff fails to respond to it. The SAC does not allege plaintiff filed a refund claim or application for reduction in assessment, prerequisites to any refund pursuant to Revenue & Taxation Code, § 5097.

Plaintiff has not alleged that he took such steps, or what the County's response was if he did. On the contrary, he argues that he could allege exhaustion was excused because “the assessment is void rather than merely excessive.” This would not change the outcome here.

Accordingly, the cause of action fails to include facts sufficient to state a cause of action and leave to amend is not warranted. The demurrer to this cause of action is sustained.

C. Third Cause of Action for Mandamus

Plaintiff pleads two bases for a writ of mandamus: that the County is required to (1) process his Government Code Claim pursuant to the Revenue and Taxation Code, and (2) accurately assess the parcels pursuant to Revenue and Taxation Code section 51 by “treating the April 22, 2024 judicial determination as controlling.”

A writ must “compel the performance of an act which the law specially enjoins as a duty resulting from an office, trust, or station.” (Code Civ. Proc., § 1085 (a).) Code of Civil Procedure section 1086 states the controlling statutory requirements for standing for mandate: “The writ must be issued in all cases where there is not a plain, speedy, and adequate remedy, in the ordinary course of law. It must be issued upon the verified petition of the party beneficially interested.” In other words, a court may only issue a writ of mandate if the petitioner establishes (1) a clear, present ministerial duty on the part of the respondent; (2) a correlative clear, present and beneficial right in the petitioner to the performance of that duty; and (3) no plain, speedy, and adequate alternative remedy exists. (*Rutgard v. City of Los Angeles* (2020) 52 Cal.App.5th 815, 824, citations omitted.)

The County demurs, correctly arguing that there is “no ministerial duty to rescind the sale.” The statute providing such remedy is only discretionary. (Rev. & Tax. Code, § 3731 [“the sale may be rescinded [...]”].) This point overlooks what plaintiff's stated basis for mandamus, however.

Plaintiff first requests the County be compelled to process his claim according to the Revenue and Taxation Code. Any such processing would ultimately require plaintiff to have filed a claim within one year of execution of the deeds. Accordingly, while the County may have incorrectly referenced the Government Claims Act in all denial / rejection correspondence, plaintiff still has no “clear, present

and beneficial right” to the County processing his claim pursuant to another statutory scheme. Plaintiff cannot show that under the Revenue and Taxation Code, the process would lead to a different result. This is because even assuming some basis for applying the discovery rule to plaintiff’s cause of action, plaintiff’s triggering date for any accrual is March 2014, the date he inspected the property and found it to be landlocked, not the April 2024 decision by Judge Mockler.

As to plaintiff’s request that the County “accurately assess” his parcels, plaintiff does not allege, and effectively concedes, that he has not exhausted his administrative remedies, as discussed above with respect to the second cause of action. Until he seeks a reduction in assessment value through the proper procedure, the County has no duty (mandatory or discretionary) to do so.

Plaintiff cannot show the required elements for mandamus. The demurrer to this cause of action is sustained.

D. Fourth Cause of Action for Declaratory Relief

An action for declaratory relief is not an appropriate method for judicial review of administrative decisions. (*Hill v. Manhattan Beach* (1971) 6 Cal.3d 279, 287, citing *Hostetter v. Alderson* (1952) 38 Cal.2d 499, 500.) Still, a complaint for declaratory relief may be construed as a petition for a writ of mandate to determine whether a defendant public entity prejudicially abused its discretion. (*Ibid.*) The Court has already discussed such cause of action (for writ relief) above. This cause of action, to the extent it addresses events already in the past, is therefore superfluous and fails on similar grounds.

Plaintiff contends that the cause of action also relates to the County’s future assessments based on an incorrect property value. There are exhaustion requirements plaintiff fails to satisfy for such a theory, which are mentioned above with respect to the second and third causes of action.

The demurrer to this cause of action is sustained.

E. Fifth Cause of Action for Inverse Condemnation

Inverse condemnation is one of two basic procedural devices (the other being eminent domain) for insuring that the constitutional proscription that “[private] property shall not be taken or damaged for public use without just compensation having first been made to . . . the owner . . .” is not violated. (*Klopping v. Whittier* (1972) 8 Cal.3d 39, 43, quoting Cal. Const., art. I, § 14.)

Here, plaintiff alleges “three independent grounds” which include the County’s conduct allowing the easement infringement when it owned the parcels, the conveyance of the deeds, and the assessing and collecting taxes since the Judgment in favor of the neighboring property owners. (SAC, ¶166.) The County demurs, arguing first that the SAC does not identify any property interest the County acquired, appropriated, or damaged for public use. The County also argues plaintiff lacks standing to sue for inverse condemnation related to the earliest conduct since plaintiff did not own the property at the time, that the County never even owned the property (just gained the power to sell it) under Rev. & Tax. Code, § 3691, and that the allegations fail under the sham pleading rule (since they are inconsistent with previous versions of the complaint).

Notably, plaintiff’s opposition to the demurrer emphasizes inaccurate future assessments based on the lack of easement. But based on his failure to file any refund claim or application for reduction in assessment, as noted above, administrative exhaustion requirements bar this theory even if the conduct could otherwise be inverse condemnation (which is doubtful in light of the

detailed statutory scheme providing appropriate tax remedies).

The demurrer to this cause of action is sustained.

V. Leave to Amend

The demurrer to the SAC is **sustained** in its entirety, without leave to amend. Though plaintiff asserts he has several factual allegations that would address any issues, the Court does not find these listed facts to be sufficient. Plaintiff has not met his burden in this regard. (See, e.g., *Medina v. Safe-Guard Products, Internat., Inc.* (2008) 164 Cal.App.4th 105, 112 [“the burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading”].) Plaintiff purchased the parcels in 2014 and 2016. Plaintiff knew very soon after this that the easement was being obstructed and had been for some time. Obtaining judgment in a case to settle the issue in court was not the triggering event.

8. 9:00 AM CASE NUMBER: C25-01177

CASE NAME: NEDA VALIASHRAFI VS. MANSOUR AZIZI

***HEARING ON MOTION IN RE: LEAVE TO FILE 2ND AMENDED COMPLAINT**

FILED BY: VALIASHRAFI, NEDA

TENTATIVE RULING:

Before the Court is the Plaintiff’s Motion, filed April 17, 2026, for Leave to File a Second Amended Complaint. Hearing was set for September 11, 2026. Defendants’ Opposition pleadings were due August 28, 2026, 9 (nine) court days in advance of hearing. (CCP 1005) Defendants filed an Opposition on September 4, 2026, a mere four court days in advance of the hearing. This would have been untimely even if it were a Reply Memorandum.

Defendants offer no explanation for their tardy submission. Their late filing has effectively precluded Plaintiffs from having a meaningful amount of time to respond.

The Court has broad discretion to accept or reject papers filed after the applicable deadline absent a prior order finding good cause for the late submission. (See Cal. Rules of Court, Rule 3.1300(d); see also *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal. App. 5th 252,262-263; *Samaniego v. Empire Today LLC* (2012) 205 Cal. App. 4th 1138,1146; see also *Shadle v. City of Corona* (1979) 96 Cal.App.3d 173, 178–179 [“The requirement that opposing papers be filed a reasonable time in advance of the hearing helps to ensure that the court and the parties will be familiar with the facts and the issues so that meaningful argument can take place and an informed decision rendered at the earliest convenient time.”].)

Here no prior order finding good cause for the late submission has been made. The Plaintiff’s motion is **granted**. The Plaintiff shall file the proposed Second Amended Complaint within 15 days of the hearing date of September 11, 2026.